

Amended Excerpts

1. Line 26 through 31:

26 Section **53E-4-205.2.** is amended to read:
 27 **53E-4-205.2** American constitutional government and citizenship course
 28 standards.
 29 (1) Beginning in the 2026-2027 school year, §→ except as provided in Subsection (2)(e), ←§
 29a and as part of the social studies requirement
 30 established under Section 53E-4-204, the state board shall require instruction on
 31 American constitutional government and citizenship.

2. Line 51 through 57:

51 (ii) state and local elections, including the current candidate nomination and selection
 52 processes; and
 53 (iii) the responsibilities of citizenship and participation in civil society[.]; and
 54 (e) §→ beginning no later than the 2027-2028 school year, ←§ examine the §→
 54a fundamental ←§ role of religion in United States history and the primacy of religious
 55 liberty to American constitutional government, including the optional topics
 56 described in Section 53E-4-205.3.
 57 (3) The course described in this section shall prioritize a close reading of the following

3. Line 77 through 83:

77 **53E-4-205.3** Religious liberty instruction -- Optional topics.
 78 (1) In accordance with Section 53E-4-205.2, the state board standards for the course on
 79 American constitutional government and citizenship may instruct an educator that the
 80 educator may examine the §→ fundamental ←§ role of religion on the following topics:
 81 (a) foundational documents and speeches in United States history, including the primary
 82 source documents described in Subsection 53E-4-205.2(3);
 83 (b) exploration and colonization of the Americas;

4. Line 90 through 95:

90 of religious sermons and pamphlets on liberty and tyranny;
 91 (g) concepts of moral equality and natural rights, including in the Declaration of
 92 Independence and other American declarations of rights;

93 (h) ~~§→~~ the debates in the Constitutional Convention and state ratifying conventions on ~~←§~~
93a the United States Constitution, especially the First Amendment;
94 (i) the abolition of slavery in the United States;
95 (j) social welfare and reform movements, including:

5. *Line 100 through 107:*

100 (v) immigrant aid; and
101 (vi) anti-lynching movements;
102 (k) United States opposition to totalitarianism, fascism, and communism;
103 ~~§→~~ [{ ~~(f)~~ United States support for the Universal Declaration of Human Rights; }]
104 [{ ~~(m)~~ }] ~~(l)~~ ~~←§~~ United States reconstruction of former World War II enemies;
105 ~~§→~~ [{ ~~(n)~~ }] ~~(m)~~ ~~←§~~ the 1950s and 1960s nonviolent Civil Rights Movement; and
106 ~~§→~~ [{ ~~(o)~~ }] ~~(n)~~ ~~←§~~ religious pluralism in contemporary America.
107 (2) An LEA shall ensure that the topics enumerated in Subsection (1) are optional.

6. *Line 108 through 120:*

108 Section **53G-10-202.** is amended to read:
109 **53G-10-202** Maintaining constitutional freedom in the public schools.
110 ~~Ĥ→~~ [{ ~~(1)~~ (a) An LEA may not provide religious instruction. }]
111 [{ ~~(b)~~ In accordance with Subsection (1)(a), an LEA may teach about religion and promote
112 ~~}]~~ ~~←Ĥ~~
112 ~~Ĥ→~~ [{ religious liberty and respect for the religious views, or lack thereof, of all, including; }]
113 [{ ~~(i)~~ philosophical questions concerning religion; }]
114 [{ ~~(ii)~~ the history of religion; }]
115 [{ ~~(iii)~~ comparative religion; }]
116 [{ ~~(iv)~~ religious texts as literature; and }]
117 [{ ~~(v)~~ the fundamental role of religion in the history of the
117a United States and }] ~~←Ĥ~~
117a ~~Ĥ→~~ [{ other countries. }] ~~←Ĥ~~
118 [~~(1)~~ ~~Ĥ→~~ (2)] ~~(1)~~ ~~←Ĥ~~ Except as provided in this section and in Section 53G-10-206, any
118a instructional
119 activity, performance, or display which includes examination of or presentations about
120 religion, political or religious thought or expression, or the influence thereof on music,

7. *Line 123 through 126a:*

123 objectives included within the context of a course or activity and conducted in

124 accordance with applicable rules or policies of the state and LEA governing boards, may
125 be undertaken in the public schools.
126 [(2) ~~hat~~→ (3)] (2) ~~hat~~ No aspect of cultural heritage, political theory, moral theory, or
126a societal value shall

8. Line 127 through 133:

127 be included within or excluded from public school curricula for the primary reason that
128 it affirms, ignores, or denies religious belief, religious doctrine, a religious sect, or the
129 existence of a spiritual realm or supreme being.
130 [(3) ~~hat~~→ (4)] (3) ~~hat~~ [~~Public schools~~] A public school may not sponsor or deny the
130a practice of prayer or
131 religious devotionals.
132 [(4) ~~hat~~→ (5)] (4) ~~hat~~ [~~School officials and employees may not, regardless of a school,~~
132a ~~LEA, or state~~
133 ~~board rule or policy,~~ Notwithstanding any policy or state board rule, a school official or

9. Line 134 through 140:

134 employee may not use the official's or employee's position to endorse, promote, or
135 disparage a particular religious, denominational, sectarian, agnostic, or atheistic belief or
136 viewpoint.
137 ~~hat~~→ [(6)] (5) ~~hat~~ An LEA shall ensure that:
138 (a) a student may express the student's beliefs about religion in homework, artwork, and
139 other written or oral assignments free from discrimination based on the religious
140 perspective of the student's submissions;

10. Line 163 through 168:

163 oligarchy;
164 (ii) political philosophies and economic systems, such as socialism, individualism,
165 and free market capitalism; [and]
166 (iii) the ~~hat~~→ fundamental ~~hat~~ role of religion in United States history and the primacy
166a of religious liberty to
167 American constitutional government; and
168 [(iii)](iv) the United States' form of government, a compound constitutional republic.

11. Line 205 through 210:

205 receiving a bachelor's degree or teaching credential[:];

206 (i) the history, principles, form of government, and economic system of the United
207 States; and
208 (ii) the §→ **fundamental** ←§ role of religion in United States history and the primacy
208a of religious liberty to
209 American constitutional government.
210 (2) Degrees, diplomas, and certificates issued [~~prior to~~]before the effective date of this